

Present: Sh. Lokender Raghav, Senior Standing Counsel for complainant-SFIO.

Accused Mukesh Modi and Rahul Modi not produced by jail authorities.

1. Today the case was fixed for presence of accused Mukesh Modi and Rahul Modi and for further proceedings. However, both the accused have not been produced by the District Jail, Gurugram. On the contrary, it is informed by the Senior Standing Counsel for complainant-SFIO that Rajasthan Police has taken both the accused to Jaipur in some other case FIR No.24 of 2018 under Sections 420, 406, 409, 467, 468, 471, 477A, 120B of the IPC registered at Police Station Special Operations Group (SOG) Rajasthan Jaipur and are in police custody till 15.06.2019. An application of SHO concerned of Jaipur Police was also sent through a Constable by said SHO. However, first of all the Superintendent District Jail, Gurugram was required to ask Jaipur Police to seek the permission of this Court before transferring the custody of the accused to the other State Police or to inform this Court but no such process has been adopted by the jail authorities. Even otherwise, even if the Rajasthan Police has taken the accused in their case on the basis of some production warrant, they are bound to produce the accused before this Court today.

2. In view of aforesaid violations and circumstances let show cause notice be issued to the SHO, Police Station Special Operations Group (SOG) Rajasthan at Jaipur to show cause why he has not produced the accused before this Court today and similarly the information from the Superintendent, District Jail, Gurugram be also called as to why he has handed over the custody of the accused to Rajasthan Police without permission of this Court and why he has not asked the SOG Rajasthan, Jaipur to produce the accused before this Court today.

3. In the meanwhile the production warrants of the accused Rahul Modi and Mukesh Modi be issued for **17.06.2019** directing the Superintendent, Central Jail, Jaipur and concerned SHO, Special Operations Group (SOG) Rajasthan at Jaipur to produce both the accused

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before this Court on that day. Since the undersigned will be on summer vacations, the file be put up before Shri S.K. Duggal, learned Additional Sessions Judge-II, Gurugram, the other Special Judge under the Companies Act and after needful the matter be posted for 01.07.2019, date already fixed for the presence of other accused.

4. Another application has been filed by the complainant-SFIO to issue the production warrants against certain accused, who have already been summoned in this case for 30.07.2019. It is mentioned that accused mentioned at serial A-117, A-120, A-122, A-123, A-126, A-131, A-134, A-142 have already been arrested by the Special Operations Group (SOG) Rajasthan at Jaipur in connection with the above said FIR and they are lodged in judicial custody in Central Jail, Jaipur. As such, let production warrants of these accused be issued for 01.07.2019 directing Superintendent, Central Jail, Jaipur to produce all the accused before this Court. Necessary production warrants be issued immediately and handed over to the Senior Standing Counsel for complainant-SFIO and the Investigating Officer for compliance.

5. File be now put up on 17.06.2019 before Shri S.K. Duggal, learned Additional Sessions Judge, Gurugram for further proceedings as ordered above.

Dt. 13.06.2019.

(Satish Kumar)

(Ravi Kumar Sondhi)
Sessions Judge, Gurugram.
(UID No.HR0026).